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James H. Curlin IV

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CHATGPT DIDN'T WRITE THIS . . . OR DID IT? THE EMERGENCE OF GENERATIVE AI IN THE LEGAL FIELD AND LESSONS FROM *MATA V. AVIANCA*

James H. Curlin, IV *

*We choose to go to the moon. We choose to go to the moon in this decade and do the other things, not because they are easy, but because they are hard, because that goal will serve to organize and measure the best of our energies and skills, because that challenge is one that we are willing to accept, one we are unwilling to postpone, and one which we intend to win, and the others, too.*¹

* J.D. Candidate, University of Arkansas School of Law, 2025. Note and Comment Editor, *Arkansas Law Review*, 2024-2025. First, I would like to thank my faculty advisor, Professor Ido Kilovaty, for his patient support and guidance throughout the writing process. I also want to give special thanks to my dear friend, Margie Alsbrook, who selflessly devoted her time, effort, and energy to help me in more ways than I can express; I will be forever grateful. I would also like to extend my deep appreciation to the *Arkansas Law Review* team, especially Abigail Riddle, Shawnya Meyers, and Payton Flower, for their hard work in bringing this comment to life. Additionally, thank you, Bethany Michau, for giving me a chance, and Jissel Esparza Saucedo, for selecting my comment for publication. Finally, I would like to express my gratitude to my entire support system, without whom none of this would have been possible: my parents, Dr. Jim and Carol Curlin, for their encouragement and belief in me, helping to make law school a reality; Mark and Janice DeLinde, for your unwavering support; and my wonderful siblings, who have reminded me that anything is possible. I love you all! Jack, Ellie Jane, and Samuel, I love you with all that I am, and every step of this journey has been for you and with you in mind. The future favors the bold, so don't ever be afraid to take risks and challenge yourself—you never know what you're capable of! Lastly, I want to thank my wife, Rachel. You have been my safe and steady comfort to weather every storm, and life keeps getting better with you by my side. I love you with every fiber of my being; thank you.

1. President John F. Kennedy, Address at Rice University on the Nation's Space Effort, (Sept. 12, 1962) (transcript available in the John F. Kennedy Presidential Library and Museum).

I. INTRODUCTION

It's no secret: Artificial Intelligence ("AI"), for better or worse, is revolutionizing the world.² The majority of people in the United States now interact with AI on a daily basis without even realizing it.³ It seems that every company, electronic device, app, store, and e-commerce website now offers its own version of AI "help" in the form of a chatbot, virtual assistant, product recommendation feature, or voice response system (think Siri or Alexa) in an attempt to make our lives easier and more efficient.⁴ Experts in almost every field are rushing to integrate AI into their workstreams and are finding helpful applications for its use in fields such as law, education, finance, and healthcare.⁵

The legal field and legal education at large are not immune to this explosion of possible uses for AI technology.⁶ A quick web search provides results for dozens of new or forthcoming applications and programs that promise to help legal professionals streamline work that is often tedious and mundane.⁷ Tired, busy, and overburdened lawyers everywhere are likely to salivate at the idea of an AI-integrated digital assistant who could sprint through the document review process without complaining and without

2. See generally Michael Simon et al., *Lola v. Skadden and the Automation of the Legal Profession*, 20 YALE J.L. & TECH. 234, 234 (2018); see also Darrell M. West & John R. Allen, *How artificial intelligence is transforming the world*, BROOKINGS (Apr. 24, 2018), [https://perma.cc/NG52-9JXN].

3. See, e.g., John L. Tripoli, *The Not-So-Quiet Revolution: AI and the Practice of Law*, 45 PA. LAW. 26, 26 (2023).

4. *Id.*; see also Katherine Haan, *How Businesses Are Using Artificial Intelligence*, FORBES, [https://perma.cc/28PA-X968] (last updated Apr. 24, 2023, 7:54 AM).

5. Steven R. Smith, *The Fourth Industrial Revolution and Legal Education*, 39 GA. ST. U.L. REV. 337, 341 (2023); see also Claudia E. Haupt & Mason Marks, *AI-Generated Medical Advice—GPT and Beyond*, JAMA NETWORK (Mar. 27, 2023), [https://perma.cc/YZ8F-HE35] (concerning three possible ChatGPT use cases in healthcare: "AI within the patient-physician relationship that augments rather than replaces clinician judgment, patient-facing AI in health care delivery that substitutes for clinician judgment, and direct-to-consumer health advice-giving."); see also Kathleen Walch, *How AI Is Transforming The Finance Industry*, FORBES (Sept. 14, 2024, 12:12 PM), [https://perma.cc/NR7Y-H4VC].

6. See Smith, *supra* note 5, at 342; see also Rhys Dipshan, *A Legal Software Explosion? Generative AI Could Turbocharge Law Firms' Tech Development*, LAW.COM (Sept. 18, 2023, 6:07 PM), [https://perma.cc/NA6Y-QBH2].

7. See Patrick Austin, *LexisNexis and Westlaw Will Launch AI Legal Research Tools*, NAT'L BUS. INST., [https://perma.cc/7LMG-ZYU7] (last visited Feb. 6, 2025); see also *The Best AI Tools For Lawyers*, LAW RANK (Sept. 29, 2024), [https://perma.cc/MAV3-PNGP].

the need for paid time off. AI's complex algorithms and machine learning capabilities promise efficiency and precision, leading to its increasing integration into various aspects of legal practice.⁸ While current iterations of AI-assisted programs are riddled with imperfections,⁹ the rapid development of technology in our modern digital age proves that these programs will ultimately reach near perfection and are likely to become indistinguishable from human input in the very near future.¹⁰ However, as with any technological advancement, AI and Generative Language Models bring with them many challenges, including the implications of their use.¹¹

One such challenge was vividly presented in the case of *Mata v. Avianca*, often referred to as "The ChatGPT Case."¹² This unprecedented case was splashed all over television screens, newspaper headlines, and social media sites for weeks, as it was one of the first significant iterations of a legal proceeding tainted by the irresponsible use of Artificial Intelligence.¹³ *Mata* is a cautionary tale of the potential missteps that can trip up the unwitting user who naively relies on the lofty promises of programs like ChatGPT without exercising the due diligence and competence required of a legal professional.¹⁴

The core objectives of this Comment are three-fold. First, to identify some of the many ethical pitfalls that can emerge from

8. See Tripoli, *supra* note 3, at 28.

9. See, e.g., Margie Alsbrook, *Untangling Unreliable Citations*, 37 GEO. J.L. ETHICS 415, 446-47 (2024); see also Mike Thomas, *12 Risks and Dangers of Artificial Intelligence (AI)*, BUILT IN, [https://perma.cc/C64T-DWXP] (last updated July 25, 2024); see also Neil Sahota, *Perfectly Imperfect: Coping With The 'Flaws' Of Artificial Intelligence (AI)*, FORBES (June 15, 2020), [https://perma.cc/5BVE-TFZX].

10. See e.g., Kelsey Piper, *Think AI was impressive last year? Wait until you see what's coming.*, VOX (Jan. 4, 2023, 9:10 AM), [https://perma.cc/RH95-XPRZ]; see also Yogesh K. Dwivedi et al., *Opinion Paper: "So What If ChatGPT Wrote It?" Multidisciplinary Perspectives on Opportunities, Challenges and Implications of Generative Conversational AI for Research, Practice and Policy*, INT'L J. INFO. MGMT., Mar. 2023, at 1, 3.

11. See Alsbrook, *supra* note 9, at 446; see also Catrina Denvir et al., *The Devil in the Detail: Mitigating The Constitutional & Rule Of Law Risks Associated with the Use of Artificial Intelligence in the Legal Domain*, 47 FLA. ST. U.L. REV. 29, 95.

12. *Mata v. Avianca, Inc.*, 678 F. Supp. 3d 443, 448 (S.D.N.Y. 2023); see also *The ChatGPT Case (Mata v. Avianca, Inc.) and AI in Courts: A Closer Look*, N.Y.C. BAR (Aug. 1, 2023), [https://perma.cc/AMF6-UQN7].

13. See Benjamin Weiser, *Here's What Happens When Your Lawyer Uses ChatGPT*, N.Y. TIMES (May 27, 2023), [https://perma.cc/DUF9-VRUX].

14. *Id.*

the marriage of AI and the law, highlighting examples on display in *Mata v. Avianca*—the landmark case revolving around the misuse of generative AI.¹⁵ Second, to acknowledge the inevitable role AI is poised to play in legal practice and outline some basic guidelines that may help ensure the integration and use of AI in the legal field is responsible, fair, and ethically sound.¹⁶ Third, from the perspective of a law school student, to address the importance of implementing AI into legal education and the imperative of properly equipping future generations of legal professionals.¹⁷

Through an examination of the evolution of Artificial Intelligence in the legal field and lessons from *Mata v. Avianca*, this Author aims to shine a light on the nuances of AI's ethically ambiguous landscape and provide a helpful roadmap for its responsible adoption into legal education and practice.¹⁸

II. BACKGROUND

AI, from conception to its current form, is nothing short of revolutionary.¹⁹ Originating in the mid-twentieth century, AI emerged from the dreams of pioneers who envisioned computer technology that could mimic the cognitive functions of the human brain—that could think, learn, and make decisions on its own.²⁰ AI's core identity is that of a machine with the ability to closely imitate intelligent human behaviors, characteristics, thoughts, and reasoning.²¹ These aspirations for the future of computing were born out of fields such as cognitive psychology, mathematics, computer science, and philosophy.²² The early days of AI were

15. See *Mata*, 678 F. Supp. 3d at 464-65.

16. See Tripoli, *supra* note 3, at 31.

17. See, e.g., Alsbrook, *supra* note 9, at 452; see also Jennifer McEntee, *How AI Is changing lawyering*, NAT'L JURIST (Feb. 22, 2024, 10:39 AM), [<https://perma.cc/M8PL-5ME2>].

18. See *infra* Part III.

19. See Tripoli, *supra* note 3, at 26.

20. See Rockwell Anyoha, *The History of Artificial Intelligence*, HARV.: SCI. IN THE NEWS (Aug. 28, 2017), [<https://perma.cc/TV5H-6LYK>].

21. See *id.*

22. *Id.*; see also Max Louwerse, *How Cognitive Science and Artificial Intelligence Are Intertwined*, UX MAG. (Dec. 21, 2022), [<https://perma.cc/U3MC-XQA9>].

characterized by basic systems and algorithms designed to replicate specific, but simple, human tasks.²³

Though AI's early capabilities were modest in their functionality and accomplishments, incremental steps in progress set the stage for more intricate and advanced developments that are now at a feverish pace.²⁴ With the introduction of neural networks in the latter half of the twentieth-century, AI's abilities took a significant leap.²⁵ In the twenty-first century, experts heralded the era of "deep learning" technology and "deep neural networks," further pushing the boundaries of what AI would be capable of.²⁶ Today, AI systems can process vast amounts of data, generate human-like text, create dramatic and captivating works of art, and make complex decisions, often in a matter of seconds.²⁷ In the context of legal education, ChatGPT has proven that it is now capable of passing not only law school final exams but also the Uniform Bar Examination and the MPRE.²⁸

Numerous companies have developed "large language model[]" AI systems that have experienced viral publicity and conversation due to the rapidly evolving AI market and fierce competition to come out on top.²⁹ Some of the more widely discussed products are Google's "Gemini,"³⁰ Microsoft's "Copilot,"³¹ "Grok," housed within Elon Musk's X,³² "Claude

23. Simon et al., *supra* note 2, at 250-51.

24. *See id.* at 251-52.

25. Dan Katcher, *The Evolution of AI Search: Past, Present, Future*, ROCKET FARM STUDIOS (Feb. 12, 2024), [https://perma.cc/D3NL-K8Q9].

26. *Id.*

27. *See* AnalytixLabs, *Generative AI vs. Traditional AI: Understand Key Differences*, MEDIUM (May 8, 2024), [https://perma.cc/EGQ7-NYSF]; Elysse Bell, *Generative AI: How it Works and Recent Transformative Developments*, INVESTOPEDIA, [https://perma.cc/42WR-FUZD] (last updated Jan. 7, 2025); Tripoli, *supra* note 3, at 28.

28. Jonathan H. Choi et al., *ChatGPT Goes to Law School*, 71 J.L. EDU. 387, 387, 391 (2022); Kristen Baginski & Celeste P. DiNicola, *AI goes to law school*, LEXISNEXIS (Dec. 12, 2023), [https://perma.cc/AC4Z-EZXR].

29. *See* Pedro Palandrani, *Assessing the Field: Exploring the Competitive Landscape of Generative AI*, GLOBAL X (Mar. 3, 2023), [https://perma.cc/2ZQB-2599].

30. Lauren Goode & Will Knight, *Google Rebrands Its AI Chatbot as Gemini to Take on ChatGPT*, WIRED (Feb. 8, 2024, 8:00 AM), [https://perma.cc/5S5W-33U3].

31. Maria Diaz, *How to use Microsoft Copilot (formerly called Bing Chat)*, ZDNET (Aug. 27, 2024, 7:57 PM), [https://perma.cc/TY59-SD7F].

32. Elena Cavender, *Elon Musk's first AI product is a chatbot named Grok*, MASHABLE (Nov. 4, 2023), [https://perma.cc/3KWE-USCQ].

AI,” created by Anthropic AI,³³ and arguably the most well-known, Open AI’s range of “ChatGPT” models.³⁴ Generative AI systems rely on learning algorithms in their programming, as well as data the systems have learned from, and are then trained using Reinforcement Learning from Human Feedback (RLHF) to generate the user’s desired output.³⁵ ChatGPT, now in its latest iteration of development as ChatGPT-4o, had over one “million users just five days after it[s] launch[.]” in November 2022 and grew to over one hundred million in less than six months.³⁶ This rapid growth in user engagement underscores the speed with which average consumers are rushing to tinker with AI technology and its many novel applications.

A. The Growth of AI Use in the Legal Field

The legal field might seem an unlikely partner for the revolutionary promises of AI. The law is known for its emphasis on its rich history and firm reliance on custom and tradition.³⁷ Nevertheless, recent years have seen a melding of the old with the new at an unprecedented pace.³⁸ Once a labor-intensive process requiring significant time, meticulous effort, and a law library full of dusty casebooks, treatises, and regional reporters, legal research has been entirely changed.³⁹ Today, AI-driven legal programs can sift through thousands of pages, spotlighting relevant content, potential legal issues, or concerns in a fraction

33. Oliver Proudfoot, *What Is Claude AI, and how does it compare to ChatGPT?*, PLURALSIGHT (Dec. 4, 2024), [https://perma.cc/D8VR-DZFD].

34. Sabrina Ortiz, *What is ChatGPT? How the world’s most popular AI chatbot can benefit you*, ZDNET (Nov. 13, 2024, 6:16 AM), [https://perma.cc/9QK5-YT2B].

35. See Bell, *supra* note 27; Choi, *supra* note 28, at 388. In other words, generative AI programs, such as ChatGPT, are capable of learning and thinking for themselves.

36. *ChatGPT — Release Notes*, OPENAI HELP CTR., [https://perma.cc/T6RM-Y8EX] (last visited Feb. 7, 2025); Cheyenne DeVon, *On ChatGPT’s one-year anniversary, it has more than 1.7 billion users—here’s what it may do next*, CNBC (Nov. 30, 2023, 5:03 PM), [https://perma.cc/WK38-Z5SD].

37. Simon et al., *supra* note 2, at 267 (noting that when lawyers are asked, “Why is it done this way[.]” the answer is often, “We’ve always done it that way.”).

38. *First thing we do, let’s bot all the lawyers*, THE ECONOMIST (Jun. 10, 2023), [perma.cc/NU9L-S9XW].

39. *Id.*

of the time a human would ordinarily take.⁴⁰ One of the most common ways this technology is being applied today is through e-discovery.⁴¹ Gone are the days of being locked in a file room, logging hundreds of hours to dig through countless boxes of files, documents, and evidence. Now, e-discovery companies utilize AI-driven programs to scan, analyze, and redact huge amounts of digital files and documents to obtain data relevant to a specific case.⁴²

Legal research, a cornerstone of the profession, has been similarly transformed.⁴³ AI tools built into expansive legal databases, such as Westlaw and LexisNexis, can now trawl vast collections of case law, legal statutes, treatises, and academic articles, pinpointing relevant information with increasing accuracy.⁴⁴ Contract analysis is another example and is one of the fastest-developing practice areas implementing AI technology to increase efficiency.⁴⁵ Complex agreements, woven with dense legal language and terminology, can be quickly analyzed by AI for inconsistencies, potential risks, and areas open to deeper concessions or negotiation.⁴⁶ Additionally, predictive analytics, still in its infancy, offers a glimpse into what the future may hold by providing lawyers insight into potential case outcomes and aiding them in crafting their legal attack strategies for trial.⁴⁷

40. *Id.*; see also Amy Swaner, *Using AI to Predict Legal Outcomes: A Powerful New Tool for Lawyers*, AI FOR LAWYERS (Oct. 7, 2024), [<https://perma.cc/Z7ZX-577D>].

41. See Nick Inglis, *The Rise of Artificial Intelligence in eDiscovery and Information Governance*, JDSUPRA (Sept. 6, 2023), [<https://perma.cc/65PZ-2Y4B>]; see also Benjamin Joyner, *The Biggest Gen AI E-discovery Developments in 2024*, LAW.COM (DEC. 26, 2024), [<https://perma.cc/8G5P-Z7LY>].

42. See, e.g., *AI eDiscovery: Powerful Document Search*, DODONAI, [<https://perma.cc/6KJ4-UG25>] (last visited Feb. 7, 2025).

43. See generally *AI for Legal Professionals*, BL, [<https://perma.cc/NKL9-N4JV>] (last visited Feb. 7, 2025).

44. See Austin, *supra* note 7.

45. See *First thing we do, let's bot all the lawyers*, *supra* note 38.

46. *Id.*; see also *AI for Legal Professionals*, *supra* note 43.

47. See generally Swaner, *supra* note 40.

B. The First ChatGPT Case—*Mata v. Avianca*

Among the many recently publicized cases and general discussions on AI's place in the law, the *Mata v. Avianca* debacle stands out as an early watershed moment and helped amplify the conversation surrounding the ethical implications of AI use in the legal field.⁴⁸ The case revolved around an attorney's use of ChatGPT, the generative language AI model developed by Open AI.⁴⁹ One of the attorneys representing Mr. Roberto Mata in an injury lawsuit against the airline company Avianca, Inc. turned to ChatGPT for help in preparing a ten-page brief for the court.⁵⁰ Mr. Steven A. Schwartz of Levidow, Levidow & Oberman P.C. authored a brief that cited more than half a dozen supporting cases containing decisions and outcomes that were (perhaps ironically from our vantage point today) almost too good to be true.⁵¹ The citations included cases such as *Martinez v. Delta Air Lines*, *Zicherman v. Korean Air Lines*, and *Varghese v. China Southern Airlines*.⁵² The problem was, however, that each one of these perfectly supportive cases was entirely fictitious—100% made up.⁵³ ChatGPT churned out party names, fact patterns, relevant issues, judicial analyses, and court holdings that were entirely hallucinated.⁵⁴ Counsel for Avianca, Inc. subsequently inquired about the cases, as they were unable to locate them in their research, and it was ultimately discovered that Mr. Schwartz relied entirely upon ChatGPT's legal knowledge (or lack thereof).⁵⁵ Before submitting his brief to the court, Mr. Schwartz never took the time to verify the legitimacy of the supposed case law support provided by ChatGPT, much less its existence.⁵⁶ Mr. Schwartz was lambasted in the court of public opinion and received fines and sanctions from the presiding judge for his lack

48. See, e.g., Weiser, *supra* note 13.

49. *Id.*

50. *Id.*

51. *Id.*

52. *Id.*

53. James Dority et al., *A "Brief" Hallucination by Generative AI Can Land You in Hot Water*, JDSUPRA (June 19, 2023), [<https://perma.cc/G42D-4BHA>].

54. *Id.*; see also Weiser, *supra* note 13.

55. See Weiser, *supra* note 13.

56. *Id.*

of due diligence.⁵⁷ He argued that he believed ChatGPT worked just like a search engine and “was unaware of the possibility that its content could be false.”⁵⁸

On one hand, the allure of AI in the legal context is undeniable: efficient data processing, seemingly consistent advice, rapid response, and quickly drafted work product.⁵⁹ However, the *Mata v. Avianca* case unveiled an ethical quagmire lying insidiously beneath the surface. One question that arises from *Mata* is the quality and reliability of advice produced by easily accessible AI programs like ChatGPT.⁶⁰ “Easily accessible” is a key phrase in this context because, as this Author will discuss further, access to more widely trusted legal AI programs like those offered by LexisNexis and Westlaw may not be financially feasible for all legal practitioners.⁶¹ ChatGPT offers a free basic mode that is relatively proficient in its capabilities, though it is still rife with issues and problems, as evidenced by the drama on display in the *Mata* fallout.⁶²

In addition to accessibility concerns, another issue for consideration is the level of review and due diligence that will be required when generative AI technology is nearly perfected and more widely integrated in the near future.⁶³ Some in the legal field have even speculated on or suggested the future possibility of AI judges.⁶⁴ The question then becomes, when such systems err somehow, where will the mantle of responsibility rest?⁶⁵ Will it sit on the shoulders of the programmers who wrote and developed the code, the legal professionals employing the tools,

57. Benjamin Weiser, *ChatGPT Lawyers Are Ordered to Consider Seeking Forgiveness*, N.Y. TIMES (June 22, 2023), [https://perma.cc/Y5AJ-6NE7].

58. See Weiser, *supra* note 13; see also Benjamin Weiser & Nate Schweber, *The ChatGPT Lawyer Explains Himself*, N.Y. TIMES (June 8, 2023), [https://perma.cc/E8HA-WG7H].

59. See *First thing we do, let's bot all the lawyers*, *supra* note 38.

60. See Weiser, *supra* note 13.

61. See Alsbroom, *supra* note 9, at 448-49; see also Tom O'Brien, *The Cost of Lexis and Westlaw's AI*, LAW.COM (Nov. 16, 2023, 12:36 PM), [https://perma.cc/EQJ2-L8E8].

62. See Weiser, *supra* note 13; see also *supra* notes 48-58 and accompanying text; *ChatGPT — Release Notes*, *supra* note 36.

63. See Simon et al., *supra* note 2, at 308-09; see also *AI and Law: What are the Ethical Considerations*, CLIO (last visited Jan. 25, 2025), [https://perma.cc/93JR-X4YS].

64. Eugene Volokh, *Chief Justice Robots*, 68 DUKE L.J. 1135, 1137-41 (2019).

65. See *AI and Law: What are the Ethical Considerations*, *supra* note 63.

or the AI programs themselves? Further, will an AI system ever be truly capable of grasping the law's intricate nuances and evolving nature,⁶⁶ or will society be ushered into a judicial nightmare straight out of Hollywood films like "Minority Report?"⁶⁷ The ramifications of *Mata* echo far and wide, challenging longstanding notions of legal practice, professional conduct and responsibility, privileged attorney-client relationships, and due diligence.⁶⁸

C. Ethical Guidelines and the Future of AI Use in the Law

The rules of legal ethics and professional responsibility are at a fork in the road because of the development of Artificial Intelligence and its ongoing merger with the legal community.⁶⁹ These rules, deeply rooted in centuries of judicial outcomes, have been crafted to uphold the sanctity of the law and a strict code emphasizing client welfare, privacy, truthfulness, and honesty.⁷⁰ Today, these foundational principles face novel challenges, ones that early drafters of the rules could not have envisioned.⁷¹

Consider client confidentiality, a bedrock principle of legal practice, essential for upholding clients' constitutional rights.⁷² How do we ensure its inviolability in an age where AI systems process sensitive client data, which then may be stored indefinitely on vulnerable servers?⁷³ Furthermore, we must consider the importance of competent legal representation as

66. See Simon et al., *supra* note 2, at 307; see also Alsbrook, *supra* note 9, at 447 ("What will happen when software that is trained to be persuaded comes into contact with millions of trained persuasive writers with competitive personalities, many of whom like to win at any cost?").

67. See generally MINORITY REPORT (DreamWorks Pictures 2002) (police utilize technology to arrest and convict murderers before they ever commit their crimes).

68. See Tripoli, *supra* note 3, at 30.

69. See Volokh, *supra* note 64, at 1161-63, 1166-67.

70. See ABA Task Force on Law and Artificial Intelligence, *Addressing the Legal Challenges of AI: Year 1 Report on the Impact of AI on the Practice of Law*, AM. BAR ASS'N (Aug. 2024), [<https://perma.cc/498W-J54Z>]; see also Julia Brickell, et al., *AI, Pursuit of Justice & Questions Lawyers Should Ask*, BL (Apr. 2022), [<https://perma.cc/RW5P-TLSY>].

71. See ABA Task Force on Law and Artificial Intelligence, *supra* note 70.

72. *Id.*; see also Volokh, *supra* note 64, at 35.

73. See ABA Task Force on Law and Artificial Intelligence, *supra* note 70; see also Volokh, *supra* note 64, at 1171-72, 1174-76.

required by the Sixth Amendment of the U.S. Constitution.⁷⁴ As AI tools become increasingly integrated into legal practice, the mandate grows for legal professionals to develop a deeper understanding of the intricacies of these systems.⁷⁵

Moreover, integrating AI into legal education is and will continue to be a vitally important component of developing this deeper understanding.⁷⁶ Law schools are beginning to acknowledge the importance of AI in the future of legal practice.⁷⁷ While some institutions and individual professors have taken tepid steps toward incorporating AI into their curricula and pedagogy, the approach, on the whole, is far from uniform.⁷⁸ Law students of today have to learn the traditional and foundational skills of legal research and analysis, writing, and argument, but they also need to be equipped with the knowledge of how to responsibly use and implement new and emerging technologies, such as AI.⁷⁹ Law students need to be introduced to technology tools capable of performing tasks that will be pertinent to their future practice of law in order to keep pace with rapidly changing developments in technology.⁸⁰

Law schools need to adapt their instructional approach to include education on AI's promising capabilities as well as its limitations, the ethical considerations of using AI in legal practice, and the potential impact of AI on client rights and the administration of justice.⁸¹ This may include, but should not be limited to, the examination of biases that can be inherent in any AI system imbued with the flaws of its creators, developing an understanding of AI decision-making processes, and where the responsibility for due diligence lies as it relates to work product

74. U.S. CONST. amend. VI; *see also* Lance Eliot, *AI & Law: AI And The 6th Amendment Effectiveness of Counsel*, MEDIUM (Dec. 9, 2021), [<https://perma.cc/D6UW-ZTCX>].

75. *See* Tripoli, *supra* note 3, at 31.

76. Jo-Anne Pugh, *New Legal Professionals Should Learn to Use AI to Their Advantage*, BL (Aug. 15, 2023, 3:00 AM), [<https://perma.cc/GQ3J-EM89>].

77. *Id.*; *see also* Baginski & DiNicola, *supra* note 28.

78. *See, e.g.*, Choi et al., *supra* note 28, at 387-88; *see also* Baginski & DiNicola, *supra* note 28; *see also* McEntee, *supra* note 17.

79. *See* Tripoli, *supra* note 3, at 31.

80. *Id.*

81. *See* Simon et al., *supra* note 2, at 299 (“[W]hile law schools have been slow to adapt, change is underway.”).

rendered through AI assistance.⁸² Law school is the most important place for this type of instruction to be implemented, because of the careful supervision and supportive environment that accompanies a student's legal education.⁸³

Conversations about AI in legal practice are deeply considering the ways in which AI technology is reshaping the very nature of legal work and future legal employment.⁸⁴ As AI develops and becomes capable of automating tasks traditionally performed by junior lawyers and paralegals, there is a pressing need to reassess what skills and knowledge future lawyers will require to be successful.⁸⁵ This evolution in the legal job market underscores the importance of instilling a mindset of adaptability, respect for new technology, and a lifelong pursuit of learning in the law students of today.⁸⁶

The challenges presented by AI are mammoth, and while some jurisdictions have begun to integrate AI into their ethical and professional responsibility guidelines, there is still considerable work to be done.⁸⁷ There is a clear mandate for ongoing dialogue, continued research, and proactive policy development to navigate the uncharted path ahead, and law schools should play a critical role in this endeavor.⁸⁸ Law schools

82. See William Josten, *Addressing bias in AI: Surveying the current regulatory and legislative landscape*, THOMSON REUTERS (Aug. 16, 2023), [<https://perma.cc/92YF-HF4U>].

83. Smith, *supra* note 5, at 398-99.

84. See generally Katya S. Cronin, *The Intentional Pursuit of Purpose: Nurturing Students' Authentic Motivation for Practicing Law*, 28 LEGAL WRITING J. 160 (2024) (addressing ABA Standard 303 and the importance of nurturing law students' curiosity while in law school).

85. Simon et al., *supra* note 2, at 289.

86. *Id.* at 289-90 (discussing the proposal of seven role definitions to better prepare law students for their future career survival in the age of AI).

87. See, e.g., Scott J. Shackelford & Rachel Dockery, *Governing AI*, 30 CORNELL J.L. & PUB. POL'Y 279, 300 (2020) ("Some experts caution that regulation will stifle innovation and should be approached carefully or not at all while others argue that the potential malicious uses of general AI should stop its development entirely. Rather than taking a wait-and-see approach to the impact of these new technologies, the best way to prevent future malicious uses is to grapple with governance concerns now, though not necessarily through the use of black-letter law in all instances . . ."); see also Michelle Kallen & Haley Tuchman, *Courts and State Bars Have a Key Role to Play in AI Regulation*, BL (Feb. 13, 2024, 3:30 AM), [perma.cc/B6Y5-YKJU]; see also Practical Guidance, *Legal Profession, Comparison Table-State Legal Ethics Guidance on Artificial Intelligence (AI)*, BL, [<https://perma.cc/4HKB-R5JX>].

88. Simon et al., *supra* note 2, at 289-90, 309-10.

must evolve and adapt to become incubators for the responsible use of AI in the legal field, ensuring that as students grow to become legal professionals, they are equipped not only with a deep and historical doctrinal knowledge of the law but also with practical know-how and ethical wisdom to use AI in a manner that enhances the legal profession while protecting the foundational values of liberty and justice for all.⁸⁹ As we steadily advance, the interchange between the use of AI and the application of legal ethics must remain a dynamic and ever-evolving dance in order to shape responsible modern legal practice for generations to come.⁹⁰

III. ANALYSIS

A. *AI and the Law—At a Crossroads: Ethical Implications of AI in Legal Practice*

When discussing the integration of AI into the legal field, one must acknowledge some of the ethical quandaries that may arise.⁹¹ These questions and issues span multiple facets of the legal profession, some of which will be analyzed here.

1. “Oh, What a Tangled Web We Weave”⁹²: Outcome Bias and the Need for Fairness

First, it’s crucial to acknowledge the possibility of bias that may emerge when employing Artificial Intelligence.⁹³ AI systems and digital technology have been praised for the potential of truly unbiased output due to their strict algorithms; however, these systems cannot ever be entirely devoid of biases.⁹⁴ For AI to operate, it must first learn from and digest the data used to

89. *Id.* at 299, 309.

90. *Id.* at 301-09.

91. *Id.* at 299-309.

92. WALTER SCOTT, *MARMION*, loc. 17 (Henry Morley ed., Project Gutenberg, 2014) (ebook).

93. See Amy Cyphert, *While AI can benefit the legal system, WVU law expert warns of potential errors and bias*, WVU TODAY (Aug. 8, 2023), [<https://perma.cc/6HAE-46CN>].

94. *Id.*

develop it, and, as some scholars have put it, “bias in, bias out.”⁹⁵ The AI system can then perpetuate these biases if the data is skewed or carries inherent prejudices, whether based on past historical injustice or politically driven motivations and judicial leanings.⁹⁶

The law, which relies heavily on past legal arguments, judgments, records and court decisions, may unintentionally introduce AI to a host of biases woven throughout the legal precedent of yesteryear.⁹⁷ For instance, consider a scenario where a legal AI system’s coding and design were built on facts and opinions from cases dating back to English common law,⁹⁸ or alternatively, laws in America during the eighteenth, nineteenth, or early twentieth centuries . . . all of which are periods marked by a widespread preference for wealthy land owners, businesses, or discrimination against specific demographics.⁹⁹ These data inputs could lead to biased and deeply flawed outputs from an AI system that simply bases its advice and content production on the data used to develop it.¹⁰⁰ The end result could be disastrous without the grounded and nuanced approach provided by an educated, experienced, and empathetic attorney or judge who understands the complexities of human nature. If we begin to rely primarily on the reasoning reached by AI and its result predictions, “the entire system becomes about outcomes instead of reasons, and data rather than people.”¹⁰¹

The potential problems are far-reaching, especially in a profession where impartiality is supposed to be the bulwark

95. *Id.* (internal quotations omitted).

96. *Id.*

97. *Id.*; see also Simon et al., *supra* note 2, at 301-04.

98. See generally Harold Berman, *The Origins of Historical Jurisprudence: Coke, Selden, Hale.*, 103 YALE L.J. 1651, 1656 (1994) (“It is conventional wisdom that distinctively English conceptions of the nature, sources, and purposes of law can be traced back to the early history of the English common law in the twelfth to fifteenth centuries.”).

99. See Kunal Parker, *Law “In” and “As” History: The Common Law in American Polity, 1790–1900*, 1 U.C. IRVINE L. REV. 587, 598 (2011) (“[L]arge segments of the American population—a changing group that included women, minors, African Americans, Native Americans, propertyless white males—were not full participants in the polity but were nevertheless subject to its laws.”) (emphasis removed).

100. Cyphert, *supra* note 93.

101. Simon et al., *supra* note 2, at 308.

protecting against the waves of injustice.¹⁰² When we talk about fighting for justice, fairness is paramount. However, if AI technology, seen as the epitome of neutrality, begins to reveal underlying biases based on its coding and algorithms, the results may lead to a deep erosion of trust in the foundations designed to ensure and uphold our system of justice.¹⁰³

2. Loose Lips Sink Ships: Accountability, Confidentiality, and Client Privacy

Another profound challenge posed by AI's involvement in the legal domain is its largely opaque and mysterious operation.¹⁰⁴ Advanced AI models, especially models equipped with deep learning, are notoriously difficult to interpret, even for the individuals who build them.¹⁰⁵ Their decision-making processes are often likened to a "black box" shrouded in mystery.¹⁰⁶ In the legal realm, where every decision, argument, and opinion requires thorough legal justification and support, such a lack of transparency can be deeply problematic.¹⁰⁷ What happens when an AI tool recommends a particular legal strategy? Can lawyers unquestioningly trust those recommendations without understanding their basis or how the system reached its conclusion? Even more importantly, if following an AI system's advice leads to an unfavorable outcome for a client, who bears the responsibility?¹⁰⁸ If a judicial decision presents an adverse outcome for one of the parties to a case, what remedies remain if

102. Julie Debeljak, *Judicial Independence in the Modern Democratic State*, 74 AUSTL. L. REFORM COMM'N REFORM J. 35, 35-38 (1999).

103. Cyphert, *supra* note 93.

104. See Will Knight, *AI's Language Problem*, MIT TECH. REV. (Aug. 9, 2016), [<https://perma.cc/Q639-ABKT>]; see also Derek Beres, *Even AI Creators Don't Understand How Complex AI Works*, BIG THINK (Apr. 17, 2017), [<https://perma.cc/J9RL-7C8Y>].

105. See, e.g., Beres, *supra* note 104 (referring to the "age of [e]ntanglement," and the issues that arise when developers can't understand how or why an AI system is producing its responses. "I think by all means if we're going to use these things and rely on them, then let's get as firm a grip on how and why they're giving us the answers as possible. If it can't do better than us at explaining what it's doing, then don't trust it.").

106. See, e.g., Lou Blouin, *AI's mysterious 'black box' problem, explained*, U. MICH.-DEARBORN NEWS (Mar. 6, 2023), [<https://perma.cc/3383-VKWY>].

107. See generally Kallen & Tuchman, *supra* note 87.

108. See, e.g., Robayet Syed, *So sue me: Who should be held liable when AI makes mistakes?*, MONASH U. (Mar. 29, 2023), [<https://perma.cc/9XQB-EP8W>].

that decision was influenced by the reasoning of AI? Issues and questions of responsibility in the age of AI point emphatically to the need for consistent accountability.¹⁰⁹ Traditionally, the legal system maintains a clear hierarchy of responsibility.¹¹⁰ The integration of AI without accountability can quickly and easily erode that scaffolding. Distilling legal reasoning to the results of cold algorithms will ultimately only reflect the reliability of the algorithm itself.¹¹¹ Decisions influenced by AI require legal professionals to “keep the law accountable to society.”¹¹²

Furthermore, “[d]ata is the lifeblood of AI[.]”¹¹³ For AI to function effectively in the legal domain, it requires access to a deep well of data, ranging from historical case records to sensitive client information and intimate details.¹¹⁴ Herein lie two major concerns: How secure is this stored data, and how can we ensure that it will remain secure?¹¹⁵ While offering innumerable benefits to society at large, the current digital age has also seen a dramatic increase in hacking, data breaches, and information leaks.¹¹⁶ AI systems, as with all other technology databases and storage servers, if not properly secured and protected, can be vulnerable to hacking and the potential breaching of highly confidential client information.¹¹⁷

Moreover, there are important concerns relating to data privacy when using third-party AI tools, such as ChatGPT and others. When an attorney uses an AI tool through a third-party

109. Simon et al., *supra* note 2, at 300.

110. Brook K. Baker, *Traditional Issues of Professional Responsibility and a Transformative Ethic of Client Empowerment for Legal Discourse*, 34 NEW ENG. L. REV. 809, 825-26 (2000).

111. Simon et al., *supra* note 2, at 300.

112. *Id.*

113. Ciarán Daly, *Data Is the Lifeblood of AI—Storage Is Its Veins*, AI BUS. (Nov. 22, 2017), [<https://perma.cc/22XN-V2TN>].

114. *Id.*

115. See Brickell, *supra* note 70. ABA resolution 112 begins to address this question. Rule 1.6 “requires understanding the operation and security of AI systems to avoid unintended access to client information—e.g., by unsecure systems, ‘smart’ assistants that transmit to the vendor, use of AI trained on a different client’s data, open-source licenses that require sharing.”

116. Simon et al., *supra* note 2, at 293-94; see also *The growing threat of data breaches*, DELOITTE, [<https://perma.cc/44DR-7P78>] (last visited Jan. 23, 2025).

117. Simon et al., *supra* note 2, at 293-94; see also Katharine Miller, *Privacy in an AI Era: How Do We Protect Our Personal Information?*, STAN UNIV. HUMAN-CENTERED ARTIFICIAL INTELLIGENCE (Mar. 18, 2024), [<https://perma.cc/4JSD-Z8ZU>].

provider for tasks like document review, contract analysis, or pleading preparation, sensitive client data may be inadvertently shared and stored within those external parties' servers and databases.¹¹⁸ The possibility of vulnerability not only puts sensitive data at risk but, in a profession where client confidentiality is sacrosanct, can lead to catastrophic breaches of the attorney-client privilege.¹¹⁹ Such scenarios would pose significant threats to maintaining the confidentiality central to the attorney-client relationship.¹²⁰ Further, though AI is becoming increasingly adept in its reasoning, it isn't clear at this stage whether AI systems fully understand the importance of confidentiality in the legal field.¹²¹

3. Don't Forget to Cross Your t's and Dot Your i's: The Importance of Diligence and Competence

A lawyer's responsibility as a legal professional is deeply grounded in their obligation and oath to remain steadfast and truthful.¹²² Lawyers are ethically bound to offer diligent legal services and maintain a high standard of competence and honesty with their clients and the court.¹²³ How do these obligations of diligence and truthfulness carry over into an AI-augmented legal practice?¹²⁴ While AI can easily handle huge amounts of data and offer rapid insights that might take an attorney hours to deduce, it should never replace their judgment or wisdom.¹²⁵ In the rapidly evolving age of Artificial Intelligence, legal professionals in the

118. See, e.g., *The key legal issues relating to the use, acquisition, and development of AI*, THOMSON REUTERS (Mar. 1, 2024) [<https://perma.cc/Q3QQ-NLUQ>].

119. *Id.*; see also Simon et al., *supra* note 2, at 293-94.

120. ABA Comm. on Ethics & Pro. Resp., Formal Op. 512, 6-7 (2024).

121. *Id.*

122. See, e.g., Henry Wade Rogers, *Legal Ethics*, 16 YALE L.J. 225, 237 (1907) ("The duty of the lawyer to the court pledges him by his oath of office to diligent service and good faith to the court as well as to his client. He must strictly observe courtesy and truthfulness. By stating as facts what he knows are not facts, to deceive the court, by misquoting evidence, by making unfair citations of authorities, the lawyer violates his oath and the ethics of his profession and seeks by dishonest methods to support his cause. To mislead the court has been called a sort of 'domestic treason.' He may be sure that his sin will find him out.").

123. *Id.*

124. Nicole Yamane, *Artificial Intelligence in the Legal Field and the Indispensable Human Element Legal Ethics Demands*, 33 GEO. J. LEGAL ETHICS 877, 885 (2020).

125. Simon et al., *supra* note 2, at 307.

modern age have an increasing duty to maintain technological competence.¹²⁶ Legal professionals must understand the AI tools they employ and should constantly supervise the tool's output to ensure the insights provided align with valid legal rules, standards, and ethics.¹²⁷

The attorney's responsibility continues well beyond merely understanding AI—that responsibility extends to the critical analysis and thorough double-checking of any piece of content produced by it.¹²⁸ Merely accepting the advice or work product from an AI tool without deep and proper scrutiny can compromise a lawyer's duty to offer competent legal advice and lead to the types of fallout seen in *Mata*.¹²⁹

4. No Joke . . . It's Expensive: Disparities in Quality AI Accessibility

The disparity in access to AI tools among legal professionals and in various legal settings presents another ethical concern.¹³⁰ LexisNexis and Westlaw, owned by Thomson Reuters, are the big players in legal research databases and are widely accepted as industry standards.¹³¹ Large law firms have the financial resources to invest in more widely accepted and acclaimed state-of-the-art AI platforms like those promised by Lexis and Westlaw, gaining an edge in efficiency and breadth of legal research capabilities.¹³² In contrast, solo practitioners and smaller firms often lack such access, leading to a widening gap in the quality of legal representation that most individuals will have access to.¹³³ Further, a small firm incapable of affording such tools will be more inclined to resort to the types of more easily

126. MODEL RULES OF PRO. CONDUCT r. 1.1 cmt. 8 (AM. BAR ASS'N 2002).

127. Simon et al., *supra* note 2, at 300-01, 307.

128. *Id.* at 300-02, 307.

129. Weiser, *supra* note 13; *see also* *Mata v. Avianca, Inc.*, F. Supp. 3d 443, 460-61 (S.D.N.Y. 2023) (“Rule 11 ‘explicitly and unambiguously imposes an affirmative duty on each attorney to conduct a reasonable inquiry into the viability of a pleading before it is signed.’”).

130. *See* Alsbrook, *supra* note 9, at 448-49.

131. Stephanie Wilkins, *LexisNexis and Thomson Reuters Weigh In on the Future of AI in Legal Research*, LAW.COM (June 30, 2023, 1:10 PM), [<https://perma.cc/B9US-2K7P>].

132. *See, e.g.*, O'Brien, *supra* note 61.

133. *See, e.g.*, Alsbrook, *supra* note 9, at 448-49.

accessible AI systems that are rife with issues and inconsistencies.¹³⁴ This digital divide raises questions about the fairness of a legal system where the quality of defense or prosecution could hinge on the attorney's access to a particular technology.¹³⁵ Access to comparable AI tools across the profession will be crucial to maintaining a balanced field of justice.

5. Will There Be Jobs Available When I Graduate?: The Future of Legal Employment

With the surge of AI tools capable of performing routine legal tasks, there is growing concern about the future of employment within the legal sector.¹³⁶ Tasks like document review, previously the domain of paralegals, junior attorneys, or contract service companies, are being rapidly replaced by the types of automation AI can provide.¹³⁷ While automation promises efficiency on the one hand, on the other, it poses serious questions about job displacements, and also a potential lack of proper oversight and legal competence that AI systems require.¹³⁸ Though some argue that AI will free up legal professionals to tackle more intricate and “important” tasks, there is undeniable anxiety about the future of legal employment.¹³⁹ Further, ethical considerations arise when we begin to think about the future of the profession. Is it ethical to reduce or permanently displace entry-level opportunities in the name of efficiency but at the cost of reduced competency development in future legal professionals?¹⁴⁰ Will this move toward efficiency remove practical training opportunities for budding lawyers?¹⁴¹ The balance between leveraging rapidly evolving technology and

134. *Id.*

135. *Id.*

136. See, e.g., Niels Martin Brochner, *Will AI Replace Lawyers?*, FORBES (May 25, 2023, 7:15 AM), [https://perma.cc/QVV7-CULG].

137. Simon et al., *supra* note 2, at 277 (discussing the bleak future awaiting “journeymen lawyers” due to the rapid integration of AI and automation).

138. *Id.* at 277, 301-02.

139. See Tripoli, *supra* note 3, at 29.

140. Simon et al., *supra* note 2, at 285; see also Steve Lohr, *AI Is Coming for Lawyers, Again*, N.Y. TIMES (Apr. 10, 2023), [https://perma.cc/8NGX-ZJ9K].

141. See Lohr, *supra* note 140.

ensuring opportunities for young legal professionals to learn and develop is a fine line to walk.

To address the challenges presented by AI and to bolster the high ethical standards of the law, the legal community must engage in proactive dialogue and widespread education on its responsible use.¹⁴² This includes redefining the competencies required of modern lawyers to include not only legal expertise but also proficiency in new and emerging technologies, such as AI.¹⁴³ In redefining these competencies, the legal field will foster an environment where technology serves the pursuit of justice without compromising the high ethical values upon which the law rests.¹⁴⁴

B. The Road Ahead: Potential Guiderrails for Ethical AI Use in the Law

The rapid advance of AI in the legal field brings with it a myriad of opportunities as well as substantial ethical traps that may befall the naive or uneducated attorney. As legal practitioners attempt to navigate this new and largely unexplored domain, it is essential to develop broad guidelines to ensure that AI is integrated and employed responsibly and ethically.¹⁴⁵ While it would be impossible to adeptly recommend complete guidelines for ethical AI use as a law student, some potential ideas for consideration are addressed below.

1. Stay in Your Lane: Establishing Clear Standards

At the heart of many challenges facing the incorporation of AI in the legal field is a profound sense of ambiguity and unease about AI as a whole—not to mention how to properly engage with it in practice.¹⁴⁶ To tackle this issue head-on, the legal community

142. Smith, *supra* note 5, at 362.

143. MODEL RULES OF PRO. CONDUCT r. 1.1 cmt. 8 (AM. BAR ASS'N 2024); *see also* Paul S. Hunter, *ABA Says Lawyers Must Understand AI*, FOLEY (July 31, 2024), [<https://perma.cc/5MXB-7ADT>].

144. Smith, *supra* note 5, at 350-52.

145. *See* Adam Thierer, *Flexible, Pro-Innovation Governance Strategies for Artificial Intelligence*, 283 R ST. INST. POL'Y STUDY 1, 13-14 (2023), [<https://perma.cc/7C3T-3UBG>].

146. *See, e.g.,* Tripoli, *supra* note 3, at 28-30.

must craft clear standards and guidelines drawing the boundaries (*even if wide-reaching*) of acceptable AI use.¹⁴⁷ These standards should be the product of a deliberate and consultative process, engaging a broad spectrum of stakeholders, including AI developers, legal ethicists, practitioners, judges, and legislators.¹⁴⁸ Standards must reflect a consensus on the permissible uses of AI in legal work, defining the ways AI can be utilized responsibly, while ensuring it does not compromise the values at the heart of legal practice.¹⁴⁹

On the ethics front, the ABA has established an ongoing source of information on AI task forces established by various states and international bodies, and some state bar associations have begun the work of developing rules of professional conduct to specifically address the use of AI.¹⁵⁰ The State Bar Associations of Florida, California, New York, and others have issued official reports and proposed amendments to their state rules of professional conduct based on the work of task forces established to address the use of AI-driven programs.¹⁵¹ Judges and courts in numerous jurisdictions have issued standing orders to inform lawyers on either the prohibition of AI use or the proper method for honestly divulging the fact that AI was used to help in the research or drafting of court filings.¹⁵² As states, legal

147. See Simon et al., *supra* note 137, at 243-46; see also Thierer, *supra* note 145, at 5-6.

148. See Simon et al., *supra* note 2, at 308-09; see also Thierer, *supra* note 145, at 2-4.

149. See Tripoli, *supra* note 3, at 31.

150. See *State AI Task Force Information*, AM. BAR ASS'N, [https://perma.cc/6S79-PYGC] (last visited Feb. 8, 2025); Jayne R. Reardon & Tom Martin, *The Ethics and Regulation of AI*, AM. BAR ASS'N (Jan. 1, 2024), [https://perma.cc/MNF5-JT5P]; see also Alex Ebert, *AI Guidance from Florida Bar Builds on Classic Ethics Rules*, BL (Jan. 19, 2024, 1:32 PM), [https://perma.cc/H5EU-KHPH]; see also Kallen & Tuchman, *supra* note 87.

151. See Debra Cassens Weiss, *Lawyers learn too late that chatbots aren't built to be accurate; how are judges and bars responding?*, ABA JOURNAL (Nov. 17, 2023, 2:11 PM), [https://perma.cc/VDD7-QM4Y]; see also Sophia Fox-Sowell, *New York State Bar Association releases guidelines for AI adoption*, STATESCOOP (Apr. 9, 2024), [https://perma.cc/LQW7-Z8QB].

152. See Jacqueline Thomsen, *US judge orders lawyers to sign AI pledge, warning chatbots 'make stuff up,'* REUTERS (June 2, 2023, 12:17 PM), [https://perma.cc/B6QB-CD65]; see also Eugene Volokh, *Federal Judge Requires All Lawyers To File Certificates Related To Use Of Generative AI*, REASON FOUND (May 30, 2023, 5:06 PM), [https://perma.cc/L5A4-Q63N]; see also *Judges Issue Guidance on Use of Generative*

organizations, and agencies continue to develop AI guidelines, there should be an emphasis on the types of data sources that are permissible for training and developing legal AI systems, ensuring they do not reinforce or amplify issues or inconsistencies in the law.¹⁵³ Such standards and guidelines can serve as a blueprint, helping legal professionals adopt AI tools confidently, knowing they align with the broader industry's ethical stance.¹⁵⁴ Additionally, proper oversight from the legal community on the development of code and algorithms used to build legal AI tools is crucial to ensure their reliance on good law.¹⁵⁵

Outcome predictability is another important area to be addressed.¹⁵⁶ AI tools should be reasonably predictable in their operation, providing consistent and reliable assistance to legal practitioners.¹⁵⁷ As AI systems continue to improve, there must be continuous testing of AI applications using various legal scenarios to assess reliability in their application of the law.¹⁵⁸ Finally, the ongoing development of legal AI tools and resources should be guided by ethical standards and frameworks prioritizing fairness and justice.¹⁵⁹

2. Clipboards and Pocket Protectors Optional: Continuous Monitoring and Assessment

One of AI's intrinsic and most fascinating characteristics is its ability to learn and adapt.¹⁶⁰ However, the constant changes taking place are inherent in this ability. In other words, the AI tools that are assessed and approved for use today likely will not

Artificial Intelligence in Court Filings in the Wake of Attorneys Citing to Nonexistent Cases Created by ChatGPT, FREDRIKSON (Feb. 2, 2024), [<https://perma.cc/JUZ6-4WE2>].

153. Nizan Geslevich Packin & Yafit Lev-Aretz, *Learning Algorithms and Discrimination*, RSCH. HANDBOOK L. & AI (2018), [<https://perma.cc/8WYN-DQFD>]; see also Cyphert, *supra* note 93.

154. See Tripoli, *supra* note 3, at 31.

155. Packin & Lev-Aretz, *supra* note 153 (“[T]he secretive nature of algorithmic decisions frustrates oversight and accountability.”).

156. *Id.*; see also Thierer, *supra* note 145, at 29.

157. See Packin & Lev-Aretz, *supra* note 153; see also Thierer, *supra* note 145, at 23-24.

158. Simon et al., *supra* note 2, at 301-02.

159. *Id.* at 301-03.

160. *Id.* at 252-53, 255, 308.

function the same way tomorrow.¹⁶¹ The ever-evolving nature of AI necessitates a proactive and continuous approach to monitoring and assessment.¹⁶² How can this be achieved? First, periodic evaluations and audits of the content produced by AI systems for legal use should become the norm.¹⁶³ Oversight could include the development of methods and practices for evaluating content produced by AI against key performance indicators (“KPIs”) that measure the balancing act between efficiency, accuracy, and compliance with ethical standards.¹⁶⁴ Ethical guidelines and the rules of professional responsibility should inform the shaping of evaluation KPIs and what constitutes ethical AI use.¹⁶⁵

Law firms and developers of legal AI systems should prioritize this level of oversight to ensure that accepted AI tools operate within ethical boundaries.¹⁶⁶ Given AI’s ability to evolve over time and with continued use, it is imperative to have mechanisms that detect drifts from its original purpose and desired outcomes.¹⁶⁷ When detected, the ability to recalibrate these systems becomes essential. Additionally, third-party assessments by independent bodies, such as the American Bar Association (“ABA”), state bar associations, and AI task forces, could bring in an additional layer of unbiased evaluation. These independent bodies could conduct periodic audits and regularly publish findings to enhance transparency and trust in legal AI tools and systems.¹⁶⁸

The legal community should also establish channels of direct feedback with AI developers, enabling continuous improvement

161. *Id.*

162. *Id.* at 301.

163. Simon et al., *supra* note 2, at 302 (“[C]ertification systems . . . would be indispensable in the coming robotic future—but currently there is little leadership in this area.”).

164. *Id.* at 300-08.

165. *See, e.g.,* Kallen & Tuchman, *supra* note 87.

166. Simon et al., *supra* note 2, at 301-02.

167. *Id.*; *see also* Holdsworth et al., *What is model drift?*, IBM (July 16, 2024), [<https://perma.cc/2SUE-NJTC>].

168. *See, e.g.,* Ivy B. Grey, *Exploring the Ethical Duty of Technology Competence, Part I*, AM. BAR ASS’N. (Mar. 08, 2017), [<https://perma.cc/D7KY-Y9G5>]; *see also* Andrew Smith, *Using Artificial Intelligence and Algorithms*, FED. TRADE COMM’N (Apr. 8, 2020), [<https://perma.cc/MSF2-9JGW>].

of AI tools.¹⁶⁹ By incorporating insights from legal professionals, developers can fine-tune AI systems to better serve practitioners' and clients' needs and ensure that AI tools designed for legal purposes remain practical, reliable, and ethical over prolonged use.¹⁷⁰

3. Can You Teach an Old Dog New Tricks?: Education and Training

Knowledge is power. However, with the increasing intersection of AI and the legal field, knowledge is also an indispensable responsibility.¹⁷¹ As AI becomes more prevalent in legal practice, ongoing education in the management, oversight, and proper application of AI should become a staple of the profession.¹⁷² Legal professionals with longstanding experience as practitioners can often become deeply entrenched in their “go-to” methods and may find it nearly impossible to branch out and learn something new.¹⁷³ Providing opportunities for practicing attorneys to deepen their understanding of AI tools is essential. To fully realize this understanding, continuing legal education (“CLE”) needs to be focused on educating and training practicing attorneys to introduce them to the benefits of AI and to help them avoid potential disasters.¹⁷⁴ CLE programs should regularly feature hands-on workshops, seminars, and courses on AI ethics and application for attorneys already in the field.¹⁷⁵ Continuous learning will ensure that even seasoned professionals are better equipped to navigate the AI-driven legal territory of the future with confidence and due diligence.¹⁷⁶

Moreover, collaborations between legal practitioners, computer science professionals, and various oversight bodies can

169. See Tripoli, *supra* note 3, at 31.

170. *Id.*, see also Simon et al., *supra* note 2, at 300.

171. See Tripoli, *supra* note 3, at 31.

172. *Id.*

173. See Alsbrook, *supra* note 9, at 445-46 (“When massive technological changes occur, lawyers often feel the profession has two choices: impede the inevitable changes, or adapt ourselves and the applicable portions of the profession to these new developments.”).

174. See generally ABA Task Force on Law and Artificial Intelligence, *supra* note 70.

175. *Id.*

176. Olga V. Mack, *Ongoing AI Education Strategies and Resources for Lawyers*, ABOVE THE L. (July 18, 2023, 5:17 PM), [<https://perma.cc/J5H7-TABH>].

pave the way for comprehensive training programs focusing on AI's technical and ethical nuances.¹⁷⁷ Additionally, as we will discuss further below, law schools must integrate a variety of instructions on the responsible use of AI into their curricula to set the stage early for future legal professionals.¹⁷⁸

4. *"Where We're Going, We Don't Need Roads"*¹⁷⁹: *Preparing for Future Challenges*

One of the quintessential traits of technology is its unpredictable evolution. While we can map out some of the potential ethical concerns surrounding AI today, tomorrow will bring a fresh set of challenges to address. To be truly prepared for the future, the legal community must foster a culture of flexibility, adaptability, foresight, and continuous engagement with learning about and preparing for new developments in technology.¹⁸⁰ Legal professionals should be prepared to engage with AI—not as passive consumers—but as active participants in its development.¹⁸¹ The legal community needs to maintain a constant dialogue with tech developers to ensure that AI tools evolve in a way that respects the legal framework and enhances the delivery of justice.¹⁸² Scenario planning and forward-looking strategies can help the legal profession prepare for future capabilities, ensuring readiness for a range of ethical and practical challenges that AI use might present.¹⁸³

Encouragingly, many within the legal field are already laying the groundwork for this forward-looking approach through discussions, forums, and academic writing focusing on the intersection of AI and ethics in the legal field.¹⁸⁴ Continued regular engagement with emerging AI technologies and their

177. *Id.*

178. Simon et al., *supra* note 2, at 299; *see also* Smith, *supra* note 5, at 376.

179. BACK TO THE FUTURE (Amblin Entertainment 1985).

180. *See* Tripoli, *supra* note 3, at 31.

181. *Id.*; *see also* Simon et al., *supra* note 2, at 289-90 (referencing "seven roles" in which humans can provide continued value in a world of machines).

182. Simon et al., *supra* note 2, at 289-94.

183. *See generally* Simon et al., *supra* note 2.

184. *See generally* Alsbrook, *supra* note 9; *see also* Smith, *supra* note 5, at 376 (discussing the need to prepare law students for a changing legal environment); *see also* Simon et al., *supra* note 9, at 289-91, 300-09.

developers, coupled with thoughtful leadership, can position the legal community at the forefront of this technological revolution, ready to tackle and responsibly address any ethical dilemma that may appear on the horizon.¹⁸⁵

C. A Student's Perspective: Artificial Intelligence in Law School

Noted linguist Noam Chomsky has famously expressed harsh criticism of AI programs like ChatGPT, saying that it “doesn’t have anything to do with education except undermining it.”¹⁸⁶ Unfortunately for Mr. Chomsky, AI isn’t going away, so educators must adapt and include it in their teaching methods. As Dr. Maya Angelou masterfully stated, “Do the best you can until you know better. Then when you know better, do better.”¹⁸⁷ In early 2023, ChatGPT-4 was tasked with taking the Uniform Bar Exam and passed with a score near the 90th percentile.¹⁸⁸ In November 2023, it was announced that ChatGPT-4 passed the MPRE with a grade that was higher than the average for most law students.¹⁸⁹ This latest development in ChatGPT’s capability is monumental because the MPRE tests law students on principles of legal ethics and professional responsibility—signifying AI’s growing ability to employ moral reasoning, not just problem-solving.¹⁹⁰ It is more important now than ever for law schools to adapt their pedagogical approach and embrace the responsibility of shepherding their students in the safe application of new and emerging technologies.¹⁹¹

185. See Tripoli, *supra* note 3, at 31.

186. See McEntee, *supra* note 17.

187. See e.g., Rachel Tirhi, *When You Know Better, Do Better*, HARDING (Nov. 03, 2023), [https://perma.cc/C5SW-N7HZ] (internal citation omitted).

188. Pablo Arredondo, *GPT-4 Passes the Bar Exam: What That Means for Artificial Intelligence Tools in the Legal Profession*, STAN. L. SCH. (Apr. 19, 2023), [https://perma.cc/L8CD-AR7J].

189. See e.g., Baginski & DiNicola, *supra* note 28.

190. *Id.*; see also Karen Sloan, *AI chatbot can pass national lawyer ethics exam*, REUTERS (Nov. 16, 2023, 5:03 AM), [https://perma.cc/VSQ4-63NX].

191. Smith, *supra* note 5, at 374-76.

1. If We Ignore It, Maybe It Will Just . . . Go Away: The Current State of AI Use in Law School

Artificial Intelligence isn't going anywhere, and as it continues to gain ground in the legal domain, law schools are grappling with the significance of its potential uses, possibilities, and problems concerning how and when to allow it in modern legal education.¹⁹² Whether or not AI is allowed in the classroom or in support of lecture and exam preparation is typically at the behest of individual professors or school-wide honor code rules,¹⁹³ and its allowance and integration varies significantly from class to class, professor to professor, and law school to law school.¹⁹⁴ Law schools such as Georgetown, Harvard, and Vanderbilt have made significant efforts to embrace AI and to provide guidance to their students on its use by establishing elective courses, programs, and AI labs.¹⁹⁵ Nevertheless, while some law schools have begun to embrace AI tools, incorporating them into specific courses or for research purposes, a majority still need to become more informed on AI technology and its potential for academic exploration.¹⁹⁶ In the classroom, when the topic of ChatGPT is raised, students are often reluctant to express interest in it or even acknowledge that they know what it is

192. Deborah Thompson Eisenberg, *ChatGPT Goes to Law School: Now What?*, 5 MD. BAR J., Summer 2023, at 103, 104.

193. *Student Code of Conduct* § 4.08 *Generative Artificial Intelligence*, UNIV. ARK. SCH. L. (Mar. 15, 2024), [<https://perma.cc/EEM2-TTNR>] (recent amendment to the Student Code of Conduct addressing generative AI use by students); *see also* Stephanie Francis Ward, *If Law Schools Prohibit ChatGPT in Writing, Can They Back It Up?*, ABA J. (Aug. 31, 2023, 10:32 AM), [<https://perma.cc/A5UA-U45F>].

194. *See, e.g.*, Vince Beiser, *AI & the Law: And What It Means for Legal Education & Lawyers*, GEO. L., Fall 2023, at 12, 15; *see also* Simon et al., *supra* note 2, at 299; Lucas Johnson, *Vanderbilt classes incorporate AI technology to enhance learning*, VAND. UNIV. (Feb. 28, 2024), [<https://perma.cc/S2EH-94ZB>] (“Professors say tools like ChatGPT can serve as a coach, tutor, and critic, likening them to an ‘exoskeleton for the mind.’”).

195. *See, e.g.*, Baginski & DiNicola, *supra* note 28; *see also* Beiser, *supra* note 194, at 15.

196. Eisenberg, *supra* note 192, at 107; *see also* Beiser, *supra* note 194, at 15, 17-18; *see also* Simon et al., *supra* note 2, at 299 (“The good news is that, while law schools have been slow to adapt, change is underway.”).

because they fear they will be viewed as attempting to cheat or skip corners.¹⁹⁷

AI tools and resources for drafting legal documents or conducting research are often deeply restricted or expressly prohibited to ensure students develop foundational skills without over-reliance on technology.¹⁹⁸ This cautious approach, especially while a student is in the early stages of their legal education, can allow the traditional and foundational skills of legal research, reasoning, and writing to be learned effectively without relying on AI.¹⁹⁹ However, complete prohibition may also contribute to slowing the preparation of law students for a future where AI is an integral component of their legal practice.²⁰⁰ Many of the skills, methods, and tools employed during the 1L year become “locked in,” especially if a student experiences academic success. Students may then be hesitant to explore or experiment with new technology or a different approach to their learning until they’re in a clerkship or out of law school. Law schools must work to find a middle ground, whereupon the old methods and the new methods of legal practice can be intertwined to create a vibrant learning environment that better prepares students for their future.

2. Work Smarter, Not Harder: Potential Benefits of AI Use in Law School

While there may be risks, there are also many potential benefits of greater acceptance of AI education. First, integrating AI tools into legal education can enhance learning outcomes.²⁰¹ By interacting with AI while in school, law students can gain real-time feedback on their legal writing, understand simplified legal concepts through AI-generated questions and examples, and

197. Serena Wellen, *Learning the Law with AI: Why Law School Students Are Tentative about Using ChatGPT*, LAWNEXT (June 2, 2023), [<https://perma.cc/XS6D-SND7>]; see also Beiser, *supra* note 194, at 15.

198. See Wellen, *supra* note 197; see also Beiser, *supra* note 194, at 15.

199. See Beiser, *supra* note 194, at 15.

200. Simon et al., *supra* note 2, at 299; see also Susan Landrum, *A New Culture, A New Language: Welcome To Law School!*, L. SCH. SUCCESS BLOG (Aug. 4, 2015, 10:27 PM), [<https://perma.cc/28F7-YPLW>]; see also Tripoli, *supra* note 3, at 31.

201. See, e.g., Beiser, *supra* note 194, at 15; see also Tripoli, *supra* note 3, at 31.

simulate legal scenarios that require critical thinking and decision-making.²⁰²

Commonly used student tools like Quizlet have integrated AI-assisted document analyzing tools, automated flash card builders, and connected chatbots in their suite of study resources.²⁰³ A student can upload their class outline, and the “Magic Notes” tool will transform the outline into a set of flashcards that can then be adjusted and customized for deeper study and preparation for final exams.²⁰⁴ The connected AI chatbot can then quiz the student with questions and scenarios drawn directly from the information provided by their outline.²⁰⁵ Many law schools offer their students access to the full range of tools and resources LexisNexis and Westlaw provide.²⁰⁶ With the recent release of the Lexis+ AI tools, students can query a chatbot on various legal questions within specific jurisdictions and can even receive help in preparing briefs, motions, memos, and pleadings.²⁰⁷

Additionally, some professors have bravely challenged their students to use ChatGPT while in class to help foster richer class discussions on AI and its accuracy.²⁰⁸ Professors across the country are experimenting with allowing their students to write papers and draft documents using ChatGPT or other AI programs.²⁰⁹ For example, a senior professor at my law school encourages students to query ChatGPT on various legal scenarios

202. See Baginski & DiNicola, *supra* note 28.

203. Sabrina Ortiz, *Quizlet launches four generative AI-powered tools to simplify studying*, ZDNET (Aug. 8, 2023, 2:48 PM), [https://perma.cc/XFB7-345X].

204. *Id.*

205. *Id.*

206. See generally, Austin, *supra* note 7; see also *Going on an Externship? Tips for Success: Westlaw/Lexis/Bloomberg Access*, U.N.H., [https://perma.cc/Q3DH-QVG6] (last visited Feb. 9, 2025); see also Scott Vanderlin, *Westlaw, Lexis, And Bloomberg Law Access Over the Summer*, UNIV. CHI. LIBR., (Apr. 24, 2024) [https://perma.cc/W7JD-LGSX].

207. *LexisNexis Launches Lexis+ AI, a Generative AI Solution with Hallucination-Free Linked Legal Citations*, LEXISNEXIS (Oct. 25, 2023), [https://perma.cc/T6PR-DHKP].

208. See *AI for Legal Professionals*, *supra* note 43.

209. See McEntee, *supra* note 17 (“We’re going to see what the possibilities are for writing and try to best understand the risks and benefits of it.”); see Beiser, *supra* note 194, at 15; see also Lucas Johnson, *Vanderbilt classes incorporate AI technology to enhance learning*, VAND. UNIV., [https://perma.cc/MLV3-5MKU] (“At Vanderbilt, students taking the AI classes say they appreciate what they’re learning now because they know they’re going to need that knowledge when they enter the workforce.”).

during class lectures to see how the system will respond and to test its accuracy against that of the professor's extensive knowledge and experience. Fellow students have shared how eye-opening this professor's approach was for them because it helped them to see the good and the bad of AI in real time. A professor of legal research and writing at Mercer Law School has shared ways that she has integrated AI into her 1L classes.²¹⁰ A recent creative approach was to use ChatGPT, Claude AI, and Lexis+ AI in drafting legal memos using the same hypothetical prompt.²¹¹ The students were then asked to perform a complete citation check of each of the cases cited in the AI-generated memos and then to compare and critique them.²¹² Through this experiment, the professor's students discovered numerous cases cited within the memos that were hallucinated, creating a perfect scenario to expose the students to AI's flaws in a real and tangible way.²¹³ In addition to these creative teaching methods, some law schools have developed technology labs with the specific purpose of exploring various uses of AI and are even introducing classes centered around AI in the legal field.²¹⁴

Creative approaches to academic engagement and interactive learning can deepen a student's understanding of the law while also helping to present both the benefits and the shortcomings of AI, as well as the ethical imperative and practical importance of remaining diligent in verifying the content produced by it.²¹⁵ Allowing the limited, open, and honest use of AI in law schools can also better prepare law students for their future in legal practice.²¹⁶ As AI becomes more prevalent and pervasive in the legal profession, future lawyers must understand

210. Margie Alsbrook & Ashley Krenelka Chase, *Three Blind Drafts: An AI Generated Classroom Exercise*, 38 SECOND DRAFT 1 (forthcoming Jan. 2025).

211. *Id.*

212. *Id.*

213. *Id.*

214. See Baginski & DiNicola, *supra* note 28 (concerning Harvard Law's "Initiative on Artificial Intelligence and the Law" and Vanderbilt Law's "AI Legal Lab"); see also Beiser, *supra* note 194, at 15 ("Georgetown Law currently offers at least 17 courses addressing different aspects of AI" and the law).

215. See Eisenberg, *supra* note 192, at 107 (stating "we're preparing our students for the challenges that lie ahead by recommitting to our mission of educating excellent critical thinkers").

216. *Id.*

how to work in partnership with AI technology, leveraging its capabilities to enhance efficiency in legal research, document review, and case analysis.²¹⁷ Early exposure to AI tools can help equip law students with the skills and confidence they will need to navigate the AI-augmented legal landscape and avoid its potential pitfalls upon graduation and entry into the legal community.²¹⁸

Finally, integrating AI into legal education can broaden access to legal knowledge and provide students with personalized learning experiences that adapt to their individual learning styles.²¹⁹ This can be particularly beneficial in large classroom settings where individualized attention from instructors is limited.

3. Gotta Learn Before the Training Wheels Come Off: Preparing Future Lawyers in the Responsible Use of AI

Incorporating AI into legal practice is challenging, and without a proper understanding of its capabilities and shortfalls, as previously discussed, its use can be catastrophic.²²⁰ Properly developing future lawyers in the responsible use of AI is paramount.²²¹ Law school is the incubator and the training ground for the future legal workforce, and because of this, law schools must play their part in the critical role of instilling a deep understanding of the ethical issues and potential missteps of AI use in the law.²²² This role includes educating students on the potential for bias in an AI system's reasoning, the importance of honesty and transparency in one's use of AI, and the importance of diligently checking any and every cited source and legal rule as is required of legal professionals.²²³

217. Simon et al., *supra* note 2, at 300.

218. *Id.* at 299-300.

219. See Beiser, *supra* note 194, at 13-19.

220. See *supra* Section II.B; see also Alsbrook, *supra* note 9, at 448 (“. . . lawyer relied on citations from ChatGPT, only to be bench-slapped by the trial judge when his opposing counsel discovered that the cases that were cited did not exist.”).

221. Simon et al., *supra* note 2, at 299.

222. See Tripoli, *supra* note 3, at 31 (“[Embracing new technology] is a challenge that we should be willing to accept and unwilling to postpone[.]”).

223. See, e.g., Grey, *supra* note 168; see also Smith, *supra* note 168.

Law students must be taught to critically evaluate AI-generated outputs and responses, understanding that while AI can provide valuable assistance, it cannot replace legally trained human judgment and wisdom.²²⁴ Developing a curriculum that emphasizes the limitations of AI and its benefits can develop a generation of lawyers who approach AI with a balanced perspective, recognizing its potential to transform legal practice while remaining acutely aware of its ethical ambiguities.²²⁵

Furthermore, practical, hands-on training in the use of AI technology should be a fundamental component of legal education.²²⁶ Training and development could take place in numerous ways, beginning with the seemingly simple openness and curiosity of professors who encourage its use in small doses or more complex and developed methods such as interactive workshops, specialized lectures, or collaborative projects that allow students to work directly with AI tools under the guidance and support of trained experts within the law school.²²⁷ Such experiences would help to demystify AI for future lawyers, making them more adept at leveraging AI technology in a way that helps the overworked attorney while upholding the integrity of the legal profession.²²⁸

Integrating AI into legal education is not just an opportunity; it is a necessary step in preparing future generations of lawyers for the complexities of the rapidly evolving modern practice of law.²²⁹ By embracing AI, law schools can offer students a more dynamic legal education and equip them with the tools and ethical understanding required to successfully navigate the future practice of law in the age of AI.²³⁰ A law school education should

224. Simon et al., *supra* note 2, at 304.

225. See Smith, *supra* note 5, at 376 (“It is a myth that law school curriculum is static. ‘Engaging in wholesale curricular review has produced experimentation . . . and enhanced . . . learning . . . across the curriculum.’”); see also Tripoli, *supra* note 3, at 31.

226. See, e.g., Mack, *supra* note 176.

227. *Id.*; see also Alsbrook & Chase, *supra* note 210.

228. See Baginski & DiNicola, *supra* note 28 (“[L]aw schools will need to ramp up their capabilities to provide instruction to students on the topic of AI itself so that future lawyers have a grasp of the way the technology works.”).

229. See Smith, *supra* note 5, at 398 (“If a law school has prepared them to do it well, they will contribute to a time of almost unparalleled advances; if they are not so prepared, they will harm their clients and society.”).

230. *Id.*

be an open and honest pursuit of legal knowledge—balancing the lessons of the past with the trends of and shifts toward the future.²³¹ Law students require an education that imparts a deep respect for the history of the legal profession and challenges them to step bravely into its future.²³²

IV. CONCLUSION

As explored in this Comment, the integration of Artificial Intelligence into the legal domain points to a massive transformation in the future practice of law. However, the ethical foundation that has sustained the law through centuries remains the same—to respect the legal system and those who serve it, and to perform one's work with competence and integrity. AI's arrival into a domain traditionally reserved for human intellect and discernment necessitates a reevaluation of the fundamental tenets of legal ethics, professional responsibility, and legal education.

Mata v. Avianca and cases like it serve as cautionary tales of the potential misuses and misapplications of AI technology and are equally prescient indicators of the inevitable integration of AI in the legal field.²³³ There is a spotlight on the importance of developing broad ethical guidelines and standards that can evolve alongside the inevitable advancements of AI technology.²³⁴ These standards cannot be intended as mere speedbumps for slowing the rapid changes in legal work and technology but must be thoughtfully developed and implemented to ensure that the sanctity of the law and its ethical practice is upheld in an increasingly automated future.

Additionally, the imperatives for legal education are clear: Law schools must pivot not only to acquaint students with AI but also to imbed in them the critical faculties necessary to harness AI judiciously.²³⁵ This educational revamp is vital to fostering a

231. *Id.* at 399 (“[L]aw schools must determine what competencies their graduates will need, specify how those competencies will be provided, and carefully assess that those competencies are in fact achieved prior to graduation.”).

232. *Id.*

233. *See supra* Section II.B.

234. *See supra* Section II.C.

235. *See supra* Section II.C.

generation of legal professionals who can confidently navigate an AI-augmented legal career while upholding the highest ethical standards. Providing hands-on experience with AI and a robust curriculum to teach the ethics required to utilize it, can empower law students to become proficient at engaging with AI responsibly.

As AI programs like ChatGPT and those developed by Westlaw, LexisNexis, Google, and others rapidly evolve and continue to improve their capabilities, they will promise increased efficiency and capability.²³⁶ However, these promises will also continue to deliver formidable challenges for their use in the legal field.²³⁷ Proper ethical considerations must continue to be woven into legal education and practice, ensuring that AI supports—rather than erodes—the foundations of justice and fairness.

Make no mistake—AI is here to stay and will only increase in efficiency, accuracy, and competence. Often, when it comes to the topic of integrating AI, the dialogue centers around whether we *should* or *should not* welcome it or whether it is *good* or *bad*—this analysis is wrong. The greater integration of Artificial Intelligence in the legal domain is inevitable, and the conversation must shift to *how* we embrace it responsibly.

236. See *supra* Section III.B.4.

237. See *supra* Section III.B.4.